SOURCE: MEPC.382(80).pdf
defines the Red Sea area as a Special Area under the said Annex,
NOTING ALSO the definition of the Special Area under MARPOL Annex V, i.e. a sea area where for recognized technical reasons in relation to its oceanographical and ecological condition and to the particular character of its traffic the adoption of special mandatory methods for the prevention of pollution of the sea by garbage, is required,
NOTING FURTHER the information provided to the Committee, at its eightieth session, by Parties including Djibouti, Egypt, Jordan, Israel, Saudi Arabia, Somalia and the Sudan, the coastlines of which border the Red Sea Special Area that adequate reception facilities are provided in all ports and terminals within the said Special Area, in accordance with the provisions of regulation 8.2 of MARPOL Annex V,
HAVING CONSIDERED the matter to establish the date on which the discharge requirements of regulation 6 of MARPOL Annex V in respect of the Red Sea Special Area shall take effect,
1 DECIDES that the discharge requirements of regulation 6 of MARPOL Annex V in respect to the Red Sea Special Area shall take effect on 1 January 2025, in accordance with

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SOURCE: MEPC.382(80).pdf
1 DECIDES that the discharge requirements of regulation 6 of MARPOL Annex V in respect to the Red Sea Special Area shall take effect on 1 January 2025, in accordance with the requirements set out in regulation 8.2 of MARPOL Annex V;
2 ENCOURAGES Member Governments, industry groups and other stakeholders to comply immediately on a voluntary basis with the Special Area requirements for the Red Sea Special Area;
3 REQUESTS the Secretary -General to notify, in conformity with regulation 8.2 of MARPOL Annex V, all Parties to MARPOL of the aforementioned decision by 31 December 2023;
4 ALSO REQUESTS the Secretary-General to notify all Members of the Organization of the aforementioned decision.
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RESOLUTION MEPC.382(80) (adopted on 7 July 2023)
ESTABLISHMENT OF THE DATE ON WHICH REGULATION 6 OF MARPOL ANNEX V, IN RESPECT OF THE RED SEA SPECIAL AREA, SHALL TAKE EFFECTRESOLUTION MEPC.382(80) (adopted on 7 July 2023)
ESTABLISHMENT OF THE DATE ON WHICH REGULATION 6 OF MARPOL ANNEX V, IN RESPECT OF THE RED SEA SPECIAL AREA, SHALL TAKE EFFECT

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SOURCE: MEPC.397(83).pdf
RESOLUTION MEPC.397(83) (adopted on 11 April 2025)
AMENDMENTS TO THE TECHNICAL CODE ON CONTROL OF EMISSION OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES (NOx TECHNICAL CODE 2008)RESOLUTION MEPC.397(83)
(adopted on 11 April 2025)
AMENDMENTS TO THE TECHNICAL CODE ON CONTROL OF EMISSION OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES (NOx TECHNICAL CODE 2008)
(Use of multiple engine operational profiles for a marine diesel engine, including clarifying engine test cycles)
THE MARINE ENVIRONMENT PROTECTION COMMITTEE
RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the functions of the Marine Environment Protection Committee conferred upon it by international conventions for the prevention and control of marine pollution from ships,

RECALLING ALSO article 16 of the International Convention for the Prevention of Pollution from Ships, 1973, as modified by the Protocols of 1978 and 1997 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the Organization the function of considering amendments thereto for adoption by the Parties,

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SOURCE: MEPC.397(83).pdf
which specifies the amendment procedure and confers upon the appropriate body of the Organization the function of considering amendments thereto for adoption by the Parties,
RECALLING FURTHER regulation 13 of MARPOL Annex VI, which makes the Technical Code on Control of Emission of Nitrogen Oxides from Marine Diesel Engines (hereafter "NO x Technical Code 2008") mandatory under that Annex,
HAVING CONSIDERED, at its eighty -third session, draft amendments to the NOx Technical Code 2008 concerning the use of multiple engine operational profiles for a marine diesel engine, including clarifying engine test cycles, as appropriate, approved at its eighty-second session and duly circulated in accordance with article 16(2)(a) of MARPOL,
1 ADOPTS, in accordance with article 16(2)(d) of MARPOL, amendments to the NO x Technical Code 2008, the text of which is set out in the annex to the present resolution;
2 DETERMINES, in accordance with articles 16(2)(f)(ii) and (iii) of MARPOL, that the amendments shall be deemed to have been accepted on 1 September 2026 unless prior to that date not less than one third of the Parties or Parties the combined merchant fleets of which

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SOURCE: MEPC.397(83).pdf
amendments shall be deemed to have been accepted on 1 September 2026 unless prior to that date not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet have communicated to the Organization their objection to the amendments;
3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL, the said amendments shall enter into force on 1 March 2027 upon their acceptance in accordance with paragraph 2 above;
4 ALSO INVITES the Parties to note that the said amendments shall enter into effect as follows:
(a) for a new individual engine or a parent engine of an engine family or engine group that has not been previously certified, the said amendments apply no later than 1 January 2028, based on the issue date of the EIAPP Certificate for the individual engine or parent engine;

(b) in the case of a new member engine to an engine family or engine group for

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SOURCE: MEPC.397(83).pdf

(b) in the case of a new member engine to an engine family or engine group for which the parent engine was certified before 1 January 2028, prior to the certification of that member engine it would need to be shown that the engine family or engine group complie d with the said amendments no later than 1 January 2030 based on the issue date of the EIAPP Certificate for

that member engine;
(c) the said amendments do not apply to a marine diesel engine which already has an EIAPP Certificate except:
(i) in the case of an engine that is subject to substantial modification on or after 1 January 2028, the said amendments would apply as specified in the definitions of "substantial modification" set out in amended paragraph 1.3.2 of the NOx Technical Code 2008 based on the issue date of the EIAPP Certificate for that engine; and
(ii) in the case of an identical replacement engine installed on or after 1 January 2028, the version of the NOx Technical Code 2008 at the time of issuance of the EIAPP Certificate to the original engine

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SOURCE: MEPC.397(83).pdf
(ii) in the case of an identical replacement engine installed on or after 1 January 2028, the version of the NOx Technical Code 2008 at the time of issuance of the EIAPP Certificate to the original engine applies, unless the replaced engine is already equipped with multiple engine operational profiles, in which case the provisions of the new chapter 8 of the NOx Technical Code 2008 apply;
5 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL, to transmit certified copies of the present resolution and the text of the amendments contained in the annex to all Parties to MARPOL;
6 ALSO REQUESTS the Secretary-General to transmit copies of the present resolution and its annex to Members of the Organization which are not Parties to MARPOL.
RESOLUTION MEPC.397(83) (adopted on 11 April 2025)
AMENDMENTS TO THE TECHNICAL CODE ON CONTROL OF EMISSION OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES (NOx TECHNICAL CODE 2008)- 3 -
ANNEX
AMENDMENTS TO THE NOx TECHNICAL CODE 2008
(Use of multiple engine operational profiles for a marine diesel engine, including clarifying engine test cycles)
Chapter 1 General
1.3 Definitions

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SOURCE: MEPC.397(83).pdf
ANNEX
AMENDMENTS TO THE NOx TECHNICAL CODE 2008
(Use of multiple engine operational profiles for a marine diesel engine, including clarifying engine test cycles)
Chapter 1 General
1.3 Definitions
1 Paragraph 1.3.2 is replaced by the following:
"1.3.2 Substantial modification of a marine diesel engine means:
.1 For engines installed on ships constructed on or after 1 January 2000, substantial modification means any modification to an engine that could potentially cause the engine to exceed the applicable emission limit set out in regulation 13. Routine replacement of engine components by parts specified in the technical file that do not alter emission char acteristics shall not be considered a "substantial modification" regardless of whether one

part or many parts are replaced. For the recertification of such an engine following a substantial modification, the version of this Code that was used for the original certification shall apply except if the engine was or is now equipped with an auxiliary control device or has multiple engine operational profiles. Where an auxiliary control device is fitted, the requirements of 2.5 and 3.3 of this Code shall

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SOURCE: MEPC.397(83).pdf
engine was or is now equipped with an auxiliary control device or has multiple engine operational profiles. Where an auxiliary control device is fitted, the requirements of 2.5 and 3.3 of this Code shall apply. Where there are multiple engine operating profiles, the requirements of chapter 8 of this Code shall apply.
.2 For engines installed on ships constructed before 1 January 2000, substantial modification means any modification made to an engine that increases its existing emission characteristics established by the simplified measurement method as described in 6.3 in excess of the allowances set out in 6.3.11. These changes include, but are not limited to, changes in its operations or in its technical parameters (e.g. changing camshafts, fuel injection systems, air systems, combustion chamber configuration, or timi ng calibration of the engine). The installation of a certified approved method pursuant to